SIMTEC THERAPEUTIC

Terms and Conditions of Sale

Simtec Therapeutic Limited · 297 Neilson Street, Onehunga, Auckland · 09 886 9897 · info@simtectp.com · Company number 9387526

Version 1.2 · Effective on the date it is introduced

1. General

These Terms and Conditions of Sale ("Agreement") govern the purchase of a Simtec Therapeutic mattress and any other goods on the order form ("Product") from Simtec Therapeutic Limited ("Company"). They bind the purchaser ("Customer") when the order form is signed.

(a) These Terms and Conditions are given to the Customer **before the order form is signed** and form part of the Agreement. A copy is left with the Customer at the time of sale.

(b) In this Agreement: **"Payment Plan"** means paying the purchase price to the Company by regular direct debit instalments, as set out on the order form. **"Finance"** means any arrangement under which a third party pays the Company for the Product and the Customer repays that third party. It includes a loan, a credit contract, a buy now pay later arrangement and a credit card. **"Finance Provider"** means the business providing the Finance. It is not the Company.

2. Price and Payment

The purchase price is the total shown on the order form. The Customer may pay it in one of these ways:

(a) **In full**, by bank transfer, by card, or by a single direct debit.

(b) **By Payment Plan**, by direct debit instalments to the Company.

(c) **By Finance**, where the Company offers Finance from a Finance Provider and the Finance Provider approves the Customer.

(d) **The Company charges no interest, no credit fees and no card surcharge on any of these. The Company does not take any security interest in the Product.**

(e) Card payments are processed by a secure payment provider. The Company does not see or keep the Customer's card number.

3. Finance

This clause applies only where the Customer applies for Finance.

(a) **The Finance agreement is separate.** It is between the Customer and the Finance Provider. The Company is not the lender, is not a party to it and does not set its terms. The Finance Provider's agreement sets out any interest, fees and repayments, and the Customer's rights under the Credit Contracts and Consumer Finance Act 2003, including any right to cancel the Finance agreement.

(b) **The application.** With the consent of each applicant, the Company sends the Finance Provider the information it needs to assess the application, as set out in clause 14(d). Each person named as a Customer on the order form is included in the application.

(c) **If the Finance is approved and the Finance Provider pays the Company,** the purchase price is paid in full. From then on the Customer owes the repayments to the Finance Provider under the Finance agreement, not to the Company.

(d) **If the Finance is not approved,** or does not go ahead for any other reason, the Company will tell the Customer. The Customer may then choose to pay under the Payment Plan, using the direct debit authority the Customer signed at the time of sale for that purpose; or pay the purchase price in full; or **cancel this Agreement at no cost to the Customer**.

(e) **The back-up direct debit authority.** A direct debit authority signed while the Finance application is assessed is used only as set out in clause 3(d). If the Finance is approved, or the Customer chooses to pay in full or cancel, the Company does not use it and destroys it securely.

(f) **If this Agreement is cancelled,** including under clause 6, the Company will tell the Finance Provider straight away and repay to the Finance Provider any money it paid the Company. Where the law treats the Finance agreement as ending with this Agreement, the Customer owes nothing under it to the Finance Provider or the Company.

(g) **The Customer's rights against the Company are not affected by Finance.** Rights under the Consumer Guarantees Act 1993, the Fair Trading Act 1986 and this Agreement apply in the same way however the purchase is

paid for. Questions about the Product go to the Company. Questions about the Finance go to the Finance Provider.
(h) The Company does not receive any payment from a Finance Provider for arranging Finance. Using Finance does not change the price the Customer pays.
(i) Clauses 9, 11, 12 and 13 do not apply to any amount the Finance Provider has paid to the Company.

4. Manufacturer's Warranty
All Simtec Therapeutic mattresses are covered by a fifteen (15) year warranty against defects in materials and workmanship, backed by the original equipment manufacturer ("OEM"). This warranty applies only to faults arising from the manufacture of the Product.
(a) The warranty does not cover damage, deterioration, soiling or loss of performance caused by factors outside the manufacturing process, including misuse, neglect or failure to follow the care instructions; accidental damage; staining, spills, burns, cuts, tears or soiling; unhygienic use; damage caused by an inadequate or unsupportive base or frame; normal wear and tear; or any alteration, modification or repair not authorised in writing by the manufacturer.
(b) The warranty is administered through the manufacturer and is non-transferable, applying to the original purchaser only unless otherwise stated in writing by the manufacturer.
(c) **Nothing in this clause limits or excludes any rights the Customer has under the Consumer Guarantees Act 1993.**

5. Comfort Guarantee
Mk III Queen and Super King mattresses are covered by a thirty (30) day comfort guarantee.
(a) The full terms of the comfort guarantee are **given to the Customer with these Terms and Conditions before the order form is signed**, and are also emailed to the Customer on confirmation of sale.
(b) Where the purchase was paid by Finance, any refund under the comfort guarantee is paid to the Finance Provider, and the Company will ask the Finance Provider to adjust or close the Finance agreement accordingly.

6. Cooling-Off Period — Uninvited Sales
Where the purchase has arisen from an uninvited approach by a Company representative, the Customer has **five (5) working days to cancel** under the Fair Trading Act 1986.
(a) **The five working days run from the day the Customer receives a copy of this Agreement.** The Customer's consultant explains this right to the Customer before the order form is signed. Where the Customer applies for Finance, the consultant also tells the Customer, before the order form is signed, that the Finance agreement carries its own cancellation rights and that the Finance Provider's agreement explains them.
(b) The Customer may cancel for any reason, by telling the Company in writing, by phone on **09 886 9897**, by email to **info@simtectp.com**, or by using the cancellation form provided with the order. **The Customer does not have to give a reason.**
(c) **If the Customer cancels within the five working days, the Company will immediately refund everything the Customer has paid to the Company, in full.** Where the purchase was paid by Finance, clause 3(f) also applies.
(d) If the Product has already been delivered, the Company will collect it at the Company's own cost, from the delivery address, at a reasonable time arranged with the Customer. The Customer must take reasonable care of the Product until it is collected, as the Fair Trading Act 1986 requires. The Customer is not responsible for normal use or for anything outside the Customer's control.
(e) The Company may accept payment and may deliver the Product during the five working days. **Doing so does not affect the Customer's right to cancel or to a full refund.**

7. Solicited Sales
Whether the cooling-off period in clause 6 applies depends on **whether the Customer personally invited the Company to attend**.
(a) **Where the Customer contacted the Company, or asked the Company to visit or call them, the sale is a solicited sale and clause 6 does not apply.** The Company records how and when the Customer made that request.
(b) **In every other case clause 6 applies** and the Customer has the cooling-off period. Where another person referred the Customer, the Company records that referral so any referral reward can be paid.

8. Delivery
When the Product is delivered depends on how the Customer pays.

(a) **Paid in full:** delivery is arranged once the payment has cleared.
(b) **Payment Plan:** delivery will not occur until the total amount paid is at least ten percent (10%) of the purchase price. The Company may also defer delivery where payments have been missed or dishonoured. **If it does, it will tell the Customer in writing, say why, and say what is needed before delivery will proceed. The Company will not continue to take payments for more than 8 weeks beyond the 10% threshold without either delivering the Product or offering the Customer a full refund.**
(c) **Finance:** delivery is arranged once the Finance Provider has approved the Finance and paid the Company. If the Finance is not approved, delivery follows the payment method the Customer chooses under clause 3(d).

9. Cancellation by the Company Before Delivery
This clause applies only to a Payment Plan. The Company may cancel the Customer's order before delivery where payments have been missed or dishonoured and the Customer has not remedied this after being asked to.
(a) Where the Company cancels, it may retain from monies paid a reasonable amount to recover its **actual** administrative costs, up to a maximum of five hundred dollars (NZD $500.00). The balance is refunded to the Customer.
(b) **The Company will give the Customer a written breakdown of any amount it retains.** The Company retains only what it has actually spent, and does not retain any amount as a profit or penalty.
(c) Where the Customer demonstrates that cancellation has arisen from genuine financial hardship, evidenced by reasonable documentation, the Company will give favourable consideration to a full refund of all monies paid.

10. Binding Contract
By signing the order form the Customer enters into a legally binding contract for the purchase of the Product.
(a) On expiry of any cooling-off period under clause 6, the purchase price remains due and payable in the way the Customer has chosen to pay it under clause 2, subject to clause 3(d) where Finance is not approved.
(b) **Nothing in this clause affects the Customer's rights under the Consumer Guarantees Act 1993, the Fair Trading Act 1986, or the Contract and Commercial Law Act 2017**, including any right to cancel where the Product is faulty or where the Customer was misled.

11. Continuing Payment Obligation — Payment Plan
Where the Customer pays by Payment Plan, the Customer remains liable after delivery for the full outstanding balance of the purchase price, which continues to be due and payable in accordance with the agreed payment terms. Delivery does not discharge, reduce or otherwise affect that obligation.
(a) The Customer must continue making all scheduled payments until the purchase price is paid in full. Failure to do so is a default under this Agreement.
(b) **If the Customer is having difficulty paying, they should contact the Company.** The Company will consider a payment arrangement.

12. Recovery of Costs on Default
If the Customer does not pay an amount owed to the Company when it is due and the Company has to take steps to recover it, the Customer must pay the reasonable costs the Company **actually incurs** in recovering it.
(a) Those costs are limited to the fees a debt collection agency or lawyer actually charges the Company for recovering the Customer's account, and any costs a court or tribunal orders the Customer to pay.
(b) **The Company charges the Customer only what the Company is actually charged.** The Company does not add any margin, commission or administration charge of its own, and does not recover the cost of pursuing any other customer's account.
(c) The Company will tell the Customer the amount before adding it to the balance, and will give a breakdown on request.
(d) **The Company does not charge interest on late payments. The Company does not charge any fee for entering into, administering, or ending the Customer's purchase.**
(e) **Whether the Customer must pay any court or tribunal costs is a matter for the court or tribunal to decide.**
(f) The Company may pursue recovery of the outstanding balance, including by a claim before the Disputes Tribunal or another court or tribunal of competent jurisdiction in New Zealand.

13. Credit Reporting
If the Customer defaults on an amount owed to the Company and the default is not remedied, the Company may disclose that default to a credit reporter.

(a) The Company may give a credit reporter the Customer's name, contact details, the amount in default and the status of the account. Credit reporters operating in New Zealand include Centrix, Equifax and illion.
(b) **A default listing remains on the Customer's credit record for five years** and may affect the Customer's ability to obtain credit.
(c) Before listing a default the Company will write to the Customer at their last known address, tell them the payment is overdue, and ask them to pay.
(d) If the Customer pays the amount, the Company will tell the credit reporter so the listing is updated.
(e) The Company may also give a credit reporter or debt collection agency the Customer's information for the purpose of recovering the debt.
(f) Repayments owed to a Finance Provider are a matter between the Customer and the Finance Provider. The Company does not report them.

14. Privacy

The Company collects the Customer's personal information to supply the Product, to arrange and administer payment (including any Finance application), and to recover any amount not paid.
(a) The information is held by Simtec Therapeutic Limited, 297 Neilson Street, Onehunga, Auckland, in accordance with the Privacy Act 2020.
(b) The Customer may ask to see the information the Company holds about them and may ask for it to be corrected, by contacting **09 886 9897** or **info@simtectp.com**.
(c) The Company may give the Customer's information to a credit reporter or debt collection agency as set out in clause 13, and to its delivery contractors for the purpose of delivering the Product.
(d) **Finance applications.** Where the Customer applies for Finance, each applicant authorises the Company to give the Finance Provider their name, address, contact details, date of birth, identification type and number, and the order details, so the Finance Provider can assess the application, including by checking the applicant's credit record. The Finance Provider handles that information under its own privacy policy. The Company keeps a secure record of these details, including the full identification number, and may use them to identify and locate the Customer if an amount owed to the Company has to be recovered.
(e) Card details are entered directly with the Company's payment provider and are not seen or kept by the Company.

15. Joint and Several Liability

Where two or more persons sign the order form as Customer, each is jointly and severally liable for the full amount owed to the Company and all other obligations under this Agreement.
(a) The Company may pursue any one or more of the signatories individually for the full outstanding amount owed to the Company, without first pursuing any other signatory.
(b) The liability of each signatory is not reduced or discharged by any arrangement made between the Company and any other signatory, by any time or indulgence granted to any other signatory, or by any other matter that might otherwise release or reduce a co-signatory's obligations.
(c) Where the Customer applies for Finance, each signatory is included in the application and gives their own consent under clause 14(d).
(d) Each signatory acknowledges that they have read and understood these Terms and Conditions and agree to be personally bound by them.

16. Complaints

If the Customer is unhappy with the Product or with how the Company has dealt with them, they should contact the Company on **09 886 9897** or **info@simtectp.com**. The Company will acknowledge a complaint within 2 working days and aims to resolve it within 20 working days.
(a) A complaint about the Finance itself goes to the Finance Provider, which must belong to an approved dispute resolution scheme. The Company will help the Customer contact the Finance Provider if asked.

These Terms and Conditions are given to the Customer before the order form is signed. By signing the order form the Customer acknowledges that they have received, read and agree to be bound by them.

— End of terms —